

TENTATIVE RULING(S) FOR June 25, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2502291

SAUNIER VS AGUAYO

TENTATIVE RULING(S):

Before the Court is Defendant Aguayo's motions to compel further responses to (1) special interrogatories, set one, (2) form interrogatories, set one, and (3) request for production of documents, set one. Defendant contends that a meet and confer letter was sent on January 21, 2026, and that she did not receive any response by January 28, 2026, the date Defendant put in her meet and confer letter as the deadline to respond. (Aguayo Decl. ¶ 4.)

In opposition, Plaintiff claims the motions are moot and that Defendant did not engage in a good faith meet and confer. Plaintiff asserts that on February 2, 2026, she reached out to Defendant and asked for a two week extension to provide supplemental responses. She asserts that

supplemental responses were prepared and served on February 19, 2026. Plaintiff does not submit a declaration in support of her factual contentions.

Defendant filed replies, asserting that the supplemental responses are defective, unverified, and insufficient. But verifications are attached to the supplemental responses attached to the oppositions.

In addition, Plaintiff is correct that a sufficient meet and confer did not occur before the motions were filed. Code of Civil Procedure section 2016.040 now requires the meet and confer to occur in person, by telephone, or by videoconference. In addition, before the motions were filed, Plaintiff demonstrated a willingness to amend. The parties could have agreed to extend the motion deadline while the issue of Plaintiff serving supplemental responses was addressed.

With respect to Defendant's other arguments, Defendant asserts that the supplemental responses remain deficient. She also contends that because Plaintiff refused to provide supplemental responses by February 5, 2026, the motions were filed. She argues that on June 5, 2026, Defendant issued a meet and confer letter and on June 10, 2026, Plaintiff agreed to provide certified, code-compliant responses by June 20, 2026. Defendant complains that Plaintiff has failed to serve any supplemental responses or provide verifications. Defendant argues that by stating she would provide verified, code-compliant responses by June 20, Plaintiff has conceded the motions.

Finally, to the extent Defendant's reply seeks monetary sanctions, it is an improper request.

Defendant's motion did not notice that sanctions were sought. Code of Civil Procedure section 2023.040 requires that "[a] request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought."

The only mention of sanctions in the motion is in the conclusion where Defendant states sanctions must be imposed. No evidence in support of sanctions was provided with the motion. Defendant's failure to comply with the notice requirements for sanctions presents a due process

issue. (*Sole Energy Co. v. Hodges* (2005) 128 Cal.App.4th 199, 208.) As such, Defendant's request for sanctions is denied.

RULING

For all the reasons stated above, the Court rules as follows:

1. Defendant did not meet and confer in good faith before filing the motion. The meet and confer is to be in person, by telephone, or videoconference. (CCP § 2016.040.)
2. To the extent the motions are directed at the original responses, the motions are moot because supplemental responses were served on February 19, 2026. Contrary to Defendant's assertion, verifications are attached to the supplemental responses.
3. If Defendant takes issues with the supplemental responses, she needed to meet and confer (see above) and bring the appropriate motion as to supplemental responses, if the parties were unable to resolve the issues. Defendant's reply asserts that Plaintiff has agreed to supplement the responses and claims that on June 10, 2026, Plaintiff agreed to do so by June 20, 2026, but has not supplemented the supplemental responses. No evidence of the agreement is offered in support.
4. The motions are denied as moot because supplemental responses were served and given the issue with the lack of a good faith meet and confer before the motions were filed.
5. There is no basis for sanctions. They were not properly noticed as being sought and no evidence in support of a sanctions award.